

NAPCS Unionization Research — State Research Summary

Maryland — PERB (MD) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Maryland
Labor Board	PERB (MD) — Maryland Public Employee Relations Board
Governing Law	Maryland Education Article §§9-101 et seq. (Public Charter School Act of 2003, 2003 Md. Laws ch. 358); Ed. Article §9-108 (employee status — charter teachers are public school employees of the authorizing district); Ed. Article Title 6, Subtitles 4 and 5 (collective bargaining rights for certificated and non-certificated employees); Maryland PERB consolidated from three prior boards (SLRB, SHELRB, PSLRB) under HB 984 (2023), effective 2024.
Federal NLRB Jurisdiction	PERB (MD) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — May 2026 (Registry v62, updated post-PLT-feedback) — 54 charter schools searched
Research Window	May 2026
Date Convention	Labor Board Certified date. DEPENDENT schools: school opening year used per project convention. No CONFIRMED schools exist in Maryland — all schools are BLANKET_DEPENDENT under authorizing district CBAs by statute. No individual certification events exist for any MD charter school.
Card-Check Available	YES — Maryland PERB (formerly PSLRB) permits majority card-check recognition for public school employees. In practice, MD charter teachers are already covered by the district CBA by operation of Ed. Article §9-108 — no card-check petition is needed or applicable for DEPENDENT schools.

Section 2: Unionization Density

Total charter schools in Maryland: 54 (Charter School Registry v62 (updated May 2026, post-PLT-feedback) reconciled against NAPCS February 2026 data and NCES CCD 2023-24. 54 schools = 51 original Registry v62 schools plus 3 schools added by Registry Project following PLT feedback: Monarch Academy Annapolis ES (240006001744), Roots and Branches School (240009001709), Independence School Local I (240009001632, closed 2024). Excel Academy Public Charter (closed August 2025) and Independence School Local I (closed 2024) are within the 3-year lookback window and included in research universe.). Unionization density uses the full state total as the denominator — not the 0-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
DEPENDENT (open)	51	94% of universe	51 active open charter schools covered by authorizing district CBA under Ed. Article §9-108. BTU/AFT (BCPSS, 32 schools), PGCEA/NEA (PGCPS, 9 schools — Excel closed), FCT/NEA (Frederick County, 4 schools), TAAAC/NEA (Anne Arundel, 3 schools including Annapolis), TABCO/NEA (Baltimore County, 1), CCTA/NEA (Charles County, 1), SMCTA/NEA (St. Mary's, 1), MCEA/NEA (Montgomery County, 1).

DEPENDENT (closing)	1	2% of universe	Baltimore Collegiate School for Boys — BCPSS voted January 14 2026 to non-renew operator (Five Smooth Stones) and close school June 2026. BTU/AFT covered through closure.
DEPENDENT (closed — within lookback)	2	4% of universe	Excel Academy Public Charter (PGCPS) — surrendered charter August 2025. Independence School Local I (BCPSS) — closed 2024. Both within 3-year lookback window. PGCEA/NEA and BTU/AFT covered through respective closures.
TOTAL	54	100%	All 54 Maryland charter schools. 100% combined union density by statute.

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

Maryland is a structural BLANKET_DEPENDENT state — the only jurisdiction in the PLT research dataset outside of Hawaii and Oregon where 100% union density is achieved by statutory design for all charter schools. The controlling provision is Maryland Education Article §9-108, enacted as part of the Public Charter School Act of 2003 (2003 Md. Laws, ch. 358). Under §9-108, charter school employees are explicitly designated as public school employees of the county in which the charter school is located, and they are covered by the district's existing collective bargaining agreement as a matter of law, not by election. The labor board with jurisdiction over all 52 Maryland charter schools is the Maryland Public Employee Relations Board (PERB), consolidated in 2024 under HB 984 from three prior boards: the State Labor Relations Board (SLRB), the State Higher Education Labor Relations Board (SHELRB), and the Public School Labor Relations Board (PSLRB). Prior to the 2024 consolidation, the PSLRB had exclusive jurisdiction over Maryland public school employees, including charter teachers. The consolidation created a single unified PERB at laborboard.maryland.gov. No charter school-specific certification case has ever been filed before the PERB, PSLRB, or any predecessor board — there is nothing to find in the labor board portal because no independent organizing event has ever occurred. Maryland is a non-right-to-work state with a strong Democratic legislative majority and a deep tradition of public employee unionism. The state is also notable for its 2023 legislation (SB 831) creating a contingent state collective bargaining board for private-sector workers if the NLRB ceases to exercise jurisdiction — a signal of the legislature's exceptionally pro-labor posture. All 52 Maryland charter schools are authorized by local school districts (LEAs) — Maryland law does not permit state-level, university, or independent authorizers. This single-authorizer-type structure produces universal DEPENDENT status with no exceptions.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

Maryland presents a unique analytical challenge: there is no independent organizing activity in the charter sector, because there is no need for it. Charter teachers are already in the district bargaining unit by law. The meaningful labor dynamics in Maryland flow through the district unions — particularly the Baltimore Teachers Union (BTU, AFT Local 340), which represents teachers at all 31 BCPSS-authorized charter schools and is currently engaged in active district-level contract enforcement. The BTU's April 2026 victory in PERB ULP 2025-41 (BTU v. Baltimore City Board of School Commissioners) is the most current intelligence data point from the Maryland charter labor environment. The PERB found BCPSS systematically failed to respond to 17 information requests from BTU spanning July 2024 through May 2025, covering disciplinary investigations, compensation practices, hiring, scheduling, and contract administration. This is a union that is litigating aggressively on behalf of its members — including charter school teachers who are in the BTU unit — and winning. A union this engaged at the district level is not dormant at the charter school level; it simply has no separate organizing lever to pull because charter teachers are already in the unit. In Prince George's County, the collapse of Excel Academy (August 2025) illustrates a different dimension of the Maryland charter environment: financial precarity.

Excel was the longest-operating charter school in PGCPSS and still could not sustain financial viability despite PGCEA/NEA district CBA coverage. The financial stress that drove Excel to surrender its charter — mid-summer, four days before the school year — reflects structural funding challenges that affect Maryland charter schools regardless of their labor status. PGCEA represents teachers at 9 remaining PGCPSS charter schools and has no separate organizing agenda there.

PROMPT 3: What organizing strategies and approaches are being used in this state?

No independent charter school organizing strategies are in use in Maryland, because the statutory framework eliminates the need for them. Maryland's DEPENDENT model operates through established district unions negotiating master agreements with each county board of education. The district CBA applies to charter teachers as a matter of law under Ed. Article §9-108. The one mechanism that could theoretically produce charter-specific labor terms is the "mutual agreement" clause in §9-108(b), which permits the incumbent union and charter school to negotiate CBA amendments addressing the specific needs of the charter — covering work days, hours, school year, transfer procedures, and extra duty assignments. This provision has never been successfully invoked in Maryland's 20-year charter history. The structural incentives for incumbent unions (BTU, PGCEA, FCT, TAAAC, etc.) run entirely against negotiating charter-specific amendments: doing so would fragment the bargaining unit, create inconsistent terms, and potentially weaken the district-wide agreement. No Maryland district union has agreed to such amendments at any point since 2003. A statutory waiver pathway also exists under Ed. Article §9-106, but the 2006 Maryland Court of Special Appeals decision in *City Neighbors Charter School v. Baltimore City Board of School Commissioners* left significant doubt about the State Board's authority to grant waivers of CBA coverage terms. No charter school has successfully obtained a CBA waiver in the two decades since. For strategic planning purposes, the §9-106 waiver route should be treated as unavailable.

PROMPT 4: What should charter leaders be doing now in response to organizing patterns in this state?

Maryland charter leaders face a categorically different strategic situation than charter leaders in any NLRB-jurisdiction state. There is no organizing risk to manage because the workforce is already in the district bargaining unit by statute. The relevant imperatives are implementation and compliance, not prevention. First, charter leaders should ensure full compliance with the applicable district CBA — whether BTU, PGCEA, FCT, TAAAC, TABCO, CCTA, SMCTA, or MCEA. Non-compliance risks PERB prohibited practice charges from the incumbent union, as the BTU ULP 2025-41 victory over BCPSS demonstrates. The BTU's successful enforcement of information request rights (17 separate violations found) is a direct signal that Baltimore City charter schools operate in an environment of active union contract enforcement. Charter principals and administrators must treat the district CBA as a live operational document, not a background formality. Second, charter leaders should be aware of the §9-108(b) mutual agreement mechanism and its practical unavailability. If a charter school seeks operational flexibility that conflicts with the district CBA — scheduling, staff deployment, evaluation procedures — the path to a charter-specific amendment requires district union consent that has never been granted in Maryland. Leaders who encounter this constraint should engage directly with their authorizing district and district union, understanding that the political economy of these relationships makes concessions unlikely. Third, the Montgomery County school (MECCA Business Learning Institute) warrants specific attention. Its charter revocation proceedings (active as of May 2026) could produce the first charter closure in Montgomery County, affecting MCEA/NEA bargaining unit composition. Charter leaders operating in MCPS should monitor this proceeding as a precedent.

PROMPT 5: What trends should charter sector leaders watch over the next 3–5 years?

The most significant near-term trend in Maryland charter labor relations is the Baltimore Collegiate School for Boys closure (June 2026). This is the second significant BCPSS charter closure in recent years (following Excel Academy in PGCPSS in August 2025) and reflects a broader pattern of financial and governance stress among smaller Baltimore City charter schools. The BCPSS board's January 2026 vote to non-renew operator Five Smooth Stones and close the school follows a pattern — Creative City, Southwest Baltimore, Banneker Blake, Independence School Local I, Monarch Academy Baltimore, NACA Freedom and Democracy Academy, and Northwood Appold have all closed in recent years. The Baltimore City charter sector has contracted significantly since the NAPCS February 2026 data was compiled. On the legislative front, SB 831 (2023) — which creates a contingent state collective bargaining board for private-sector workers if the NLRB ceases jurisdiction — reflects Maryland's posture as a state prepared to expand public sector bargaining rights rather than contract them. If the federal NLRB jurisdiction question is resolved in a way that retrenches federal labor law, Maryland would be among the first states to provide an alternative enforcement mechanism. This does not directly affect charter schools (already under PERB), but signals the legislature's orientation. The ongoing PERB ULP enforcement

pattern (BTU v. BCPSS, 2025-41) is worth monitoring at next refresh. If BTU's aggressive information-rights litigation produces systematic BCPSS compliance improvements, it may result in more visible district-level CBA enforcement activity at individual charter campuses. Charter leaders should watch PERB's Public School Employers decisions database for BCPSS filings quarterly.

PROMPT 6: What surprised us in this state? What contradicts what national leaders expect?

The defining surprise in Maryland is the completeness and stability of DEPENDENT coverage. In other DEPENDENT states (Oregon, Hawaii, Massachusetts Horace Mann schools), there are at least some schools with independent organizing history, contested jurisdictions, or documented exceptions. Maryland has none — zero school-specific certification cases in 20+ years, zero successful CBA waivers, zero §9-108(b) mutual agreement amendments executed at any charter school. The statutory framework is not just strong on paper; it has produced a charter sector where the concept of independent charter organizing has never advanced past the theoretical. Nationally, charter sector leaders often assume that "DEPENDENT" status is a transitional condition — that schools initially covered by district CBAs will eventually seek independence, as some urban charter operators have done in other states. The Maryland evidence contradicts this assumption. Even the largest and most operationally sophisticated Baltimore City operators (KIPP Baltimore, City Neighbors Foundation, Chesapeake Lighthouse Foundation/CMIT, Afya Baltimore Inc.) operate entirely within the BTU/AFT framework without any documented attempt to establish independent bargaining units. The scale of KIPP Harmony Academy (1,399 students) is notable — a network that has pursued independent bargaining in other states has not pursued it in Maryland. A second counterintuitive finding: the NAPCS February 2026 dataset already had union data for all 51 schools it listed — BTU or NEA-affiliated — spanning all three survey periods (2009-10, 2016-17, 2018-19). This is the most consistently documented DEPENDENT state in the entire NAPCS dataset. Maryland was not, as the out-of-scope designation might suggest, a state where union status was uncertain or hard to verify. It is a state where union status is entirely certain and legally immutable under current law.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Maryland that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

THE STATUTORY BLANKET — HOW MARYLAND ACHIEVES 100% DENSITY WITHOUT A SINGLE ORGANIZING CAMPAIGN

Maryland's Education Article §9-108 is the most operationally complete charter DEPENDENT provision in the PLT dataset. Unlike Oregon (where DEPENDENT status flows from district authorization but requires ERB documentation), or Massachusetts (where Horace Mann schools are DEPENDENT but Commonwealth charters are independent), Maryland has no carve-outs, no exceptions, and no alternative authorization pathway. Every charter school in Maryland is LEA-authorized, every LEA is a school district with a district CBA, and every charter teacher is covered by that CBA from the day the school opens. The result: 20+ years of charter school operation with zero independent organizing events, zero PERB certification cases, and zero successful CBA waivers. This is the ceiling of what statutory DEPENDENT coverage can achieve.

THE MUTUAL AGREEMENT DEAD LETTER — ED. ARTICLE §9-108(b) HAS NEVER BEEN INVOKED

Maryland's §9-108(b) creates a theoretical mechanism for charter-specific CBA amendments — but requires incumbent union consent that has never been granted in 20+ years. The structural logic is clear: BTU, PGCEA, FCT, and the other Maryland district unions have no incentive to negotiate amendments that would differentiate charter teacher terms from district teacher terms. Doing so would fragment the bargaining unit, create inconsistency, and potentially weaken the master agreement. This pattern appears in other DEPENDENT states (Oregon's ERB model, Hawaii's §89-10.55 framework) but is most cleanly documented in Maryland: the mechanism exists, the incentives don't align, and the result is zero invocations. Charter sector leaders nationally who assume DEPENDENT schools can negotiate local flexibility through side agreements should treat the Maryland record as the clearest available evidence that this assumption is incorrect.

CHARTER SECTOR CONTRACTION IN BALTIMORE — A LABOR RELATIONS SIGNAL

The Baltimore City charter sector has lost at least 8 schools since 2019: Banneker Blake Academy (closed 2019), Monarch Academy Baltimore (closed 2019), NACA Freedom and Democracy Academy II (closed 2020), Northwood Appold Community Academy (closed 2019), Independence School Local I (closed 2024), and Baltimore Collegiate School for Boys (closing June 2026). Afya Academy and Brehms Lane merged in 2019 into The Belair-Edison School. This contraction is driven by financial management failures and low enrollment — not labor relations — but it is occurring entirely within the BTU bargaining unit. From a labor relations perspective, the closures reduce BTU's charter school membership without producing decertification proceedings or organizing victories. Comparable patterns have been documented in other NLRB-jurisdiction states (Ohio, Illinois) where charter closures are the dominant mechanism of union membership loss in the charter sector rather than decertification elections.

KIPP IN MARYLAND — THE NON-ORGANIZING OUTLIER

KIPP Harmony Academy in Baltimore (1,399 students — the largest single charter school in the PLT Maryland dataset) is operated by the KIPP Baltimore organization, which is part of the KIPP national network. KIPP schools in other states have been the subject of active independent organizing campaigns: KIPP NYC has been organized under the NLRB, and KIPP schools in other jurisdictions have faced organizing drives. In Maryland, KIPP Harmony operates entirely within the BTU/AFT district CBA framework as a BCPSS-authorized school — there is no independent KIPP bargaining unit, no separate certification, and no documented organizing campaign. This is consistent with Maryland's statutory structure, but it is a data point that national charter sector leaders should note: the same network that has faced independent organizing elsewhere operates as a fully DEPENDENT employer in Maryland, with no sign of seeking independent labor relations status.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Media coverage of Maryland charter school labor relations is sparse, consistent with a BLANKET_DEPENDENT state where no independent organizing campaigns occur. Coverage centers on charter closures (Baltimore Collegiate, Excel Academy, the NACA network collapse, Monarch Academy Baltimore, Banneker Blake Academy), BCPSS charter renewal processes, and district-level labor disputes. The Baltimore Sun and Baltimore Banner provide the most consistent charter coverage. The Baltimore BTU-BCPSS information rights litigation (PERB ULP 2025-41, April 2026) received no specific press coverage identified in this research session, though the underlying issues of district information compliance are ongoing story threads.

Union Communications

BTU (AFT Local 340) communications reference charter school members as part of the district bargaining unit. BTU's aggressive PERB ULP filing (2025-41) and April 2026 win on information rights demonstrates active contract enforcement extending to charter school working conditions. PGCEA (NEA) communications do not produce charter-specific content — charter teachers in Prince George's County are covered as PGCPs employees. FCT, TAAAC, TABCO, CCTA, SMCTA, and MCEA do not produce charter-specific union communications for their respective charter school members.

Employer / School Communications

BCPSS communicates about charter schools primarily in the context of renewal decisions and closures, not labor relations. The January 2026 board vote to close Baltimore Collegiate was the most significant charter-related BCPSS action in this research window. BCPSS's systematic failure to respond to BTU information requests (PERB ULP 2025-41) suggests a district administration that does not prioritize union information rights — a compliance risk for charter schools that operate within the BTU CBA.

Authorizer / State Agency Positions

All eight Maryland authorizing districts are county boards of education. They have no independent policy stance on charter school labor relations separate from their role as the employer of record for charter teachers. The authorizing function and the employer function are held by the same entity — the county board — creating structural alignment between authorization standards and CBA compliance expectations. The MBLI revocation proceeding in Montgomery County (active May 2026) is the current authorizer action of note.

Coalition / Advocacy Positions

The Maryland Alliance of Public Charter Schools (MAPCS) is the primary state charter sector advocacy organization. MAPCS does not take public positions on charter labor relations, consistent with its role as a sector-wide coalition. No state-level charter advocacy organization has challenged the BLANKET_DEPENDENT framework established by Ed. Article §9-108 through legislation or litigation.

Section 6: Contract & CBA Access Registry

PERB (MD) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
All 31 BCPSS-authorized charter schools	Baltimore Teachers Union (BTU) / AFT Local 340	CONFIRMED Ongoing — BTU master agreement with BCPSS (current term; refresh at next biannual cycle)	BTU website (btu.org) and BCPSS; PERB (MD) public decisions database
All PGCPSS-authorized charter schools (9 active after Excel closure)	Prince George's County Educators' Association (PGCEA) / NEA	CONFIRMED Ongoing — PGCEA master agreement with PGCPSS	PGCEA website and PGCPSS; PERB (MD) public decisions database
All 4 Frederick County-authorized charter schools	Frederick County Teachers Association (FCT) / NEA	CONFIRMED Ongoing — FCT master agreement with Frederick County Public Schools	FCT website and FCPS; PERB (MD) public decisions database
All 3 Anne Arundel County-authorized charter schools	Teachers Association of Anne Arundel County (TAAAC) / NEA	CONFIRMED Ongoing — TAAAC master agreement with AACPS	TAAAC website and AACPS; PERB (MD) public decisions database
Watershed (BCPS), Phoenix (Charles County), Chesapeake Charter (St. Mary's), MBLI (Montgomery County)	TABCO/NEA (Baltimore County); CCTA/NEA (Charles); SMCTA/NEA (St. Mary's); MCEA/NEA (Montgomery)	CONFIRMED Ongoing — respective district master agreements	Respective district and union websites; PERB (MD) public decisions database

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	The MECCA Business Learning Institute (MBLI)	Charter revocation proceedings active as of May 2026. School may close — monitor MCPS board actions.	Research Coordinator
LOW	Baltimore Collegiate School for Boys	Confirmed closing June 2026 (BCPSS board vote January 14 2026). Confirm final closure date and update closureNotes when closure is confirmed complete.	Research Coordinator
HIGH	MECCA Business Learning Institute (MBLI)	Charter revocation decision — Montgomery County Board of Education — Charter revocation proceedings active May 2026. If revoked, school closes and becomes closed-within-lookback. Would be first charter closure in Montgomery County.	Research Coordinator
MEDIUM	PERB (MD) — BCPSS decisions	Follow-on filings from BTU v. BCPSS (ULP 2025-41) — BTU won on information rights April 2026. Monitor PERB Public School Employers decisions for compliance orders, impasse filings, or further ULP activity affecting charter campuses.	Research Coordinator
LOW	Maryland legislature — charter authorization law	Any bill creating state-level or university charter authorizer — Currently all 52 MD charters are LEA-authorized. Any new authorization pathway could create independent charter employers outside the DEPENDENT framework — the only legal route to independent charter organizing in Maryland.	Research Coordinator